DOCUMENT 6 — REDLINE / CROSSWALK (REVISION 5)

Columns: current Ohio law → the change → where the idea came from. Full text is in Document 5.

Origin key: OH existing Ohio law; **H508 / H14** prior Ohio bills; **S174** S.B. 174 (Senate-passed or House substitute); **NEW** drafted for this project. Rows marked **R5** changed in Revision 5.

Status and the presumption

Current law	Change	Origin
3109.03 covers spouses only	All parents; no preference by sex or marital status	OH (extended)
3109.042(A): the unmarried mother is sole custodian	Both parents are custodians once paternity is established; status is not a schedule	NEW; OH 3109.04(L)(6)
3109.401 policy findings	Fit parents ordinarily decide their children's interests	*Troxel*
3109.04(A), (D), (G): sole custody by default	50/50 presumption, including 3109.12 orders (**R5:** by reference, not amendment); no plan needed	H508; H14; KRS 403.270; W.Va. § 48-9-102a; Fla. § 61.13; RSMo 452.375
3109.04(F)(1): open-ended best interest	Enumerated rebuttal grounds; (F)(1) counts only as it bears on them	NEW; H14; KRS 403.270
3109.04(B): child interview, no age or weight	**R5:** a reasoned preference at 12+ is followed unless endangering, impracticable, or not the child's own; written findings; no child must choose	OH 3109.04(B) (procedure); O.C.G.A. 19-9-3(a)(5) (weight)
Protection orders: no presumption rule	Full-hearing orders switch the presumption off; ex parte and consent orders govern by their terms	KRS 403.315 (adapted); OH 3113.31
—	Written facts; maximize time; 90-night floor (**R5:** a child's preference is an exception)	Minn. § 518.175 subd. 1(g); OH 3119.051
Fisher: status change needs changed circumstances	Restoration by motion; schedule unchanged; first schedule motion at 50/50	OH 3109.04(E)(1)(b); KRS 403.340(5)
3109.043	28-day hearing; no inference from a temporary order	Civ.R. 75(N)(2); S174

Court orders control; services

Current law	Change	Origin
Scattered case law; Sup.R. 8.06(A)	**R5:** one rule: the order stands until	*Weisgarber*; *Gregory*; *In re*

Current law	Change	Origin
(3); 6.42(B)	a court changes it or the parents agree to a particular deviation; no one else reduces, suspends, supervises, or conditions; GAL is evidence; parenting coordinator implements only	*Hoffman*
3109.053: court "shall impose the cost" of classes and counseling; 3109.052: parents may be ordered to pay mediation; Sup.R. 8.02(A)(5): GAL compensation in the order	**R5:** parents may agree to pay; a requesting parent may be charged; otherwise a court-required service (**including GALs**) is free to the non-agreeing parent; nonpayment never delays or restricts	Sup.R. 8.02(I)(2)–(3) (extended); NEW

Allegations

Current law	Change	Origin
No limit	90-day hearing; 36-month limit subject to one 45-day extension; 30-month hearing; tolling; no repackaging	OH 2151.35(B)(1); OH 2945.72
2151.421 immunity; 2921.14	Good faith protected; knowingly false = clear and convincing proof of falsity, knowledge, and purpose	KRS 403.270(4)(h); H14

Enforcement

Current law	Change	Origin
3125.10: one CSEA per county	The CSEA is also the FSEA; FSEA duties non-IV-D	NEW; 45 CFR 304.20(b)
No administrative parenting enforcement	Optional complaint → determination → court entry absent objection; parenting coordinator first; one record; referral	OH 3119.63–.65, 3111.49; MCL 552.641–.644; Minn. § 518.1751
—	**R5:** remedy is same-type, same-duration make-up time plus a recorded violation; **no fine, fee, or damages created**	MCL 552.642; Tex. § 157.168
2705.031(B)(2): parent initiates contempt	**R5:** the FSEA may file for the parent at referral thresholds (in 3109.047(H), not 2705.031)	OH 2705.031(B)(1) (support analog)
3109.051(K): make-up time "may"	"Shall"; 28-day hearing; excuses; reasonable efforts on refusal; three findings = change in	Tex. § 156.107; MCL 552.642

Current law	Change	Origin
	circumstances	
3109.05(D): no withholding support for denied time	Unchanged; no money flows between the systems	OH

Support

Current law	Change	Origin
One undifferentiated child support amount	Two labeled components, both child support for all purposes; neither is spousal support (**R5:** in 3119.024, not 3119.01)	42 U.S.C. 659(i)(2)
3119.05(P) child care; 3119.22–.23 deviations	**R5:** accountable = child care + child-specific deviations + agreed or designated amounts (capped); remainder parental. **No percentage.** Total unchanged	OH worksheet; NEW
No accounting duty	Annual request through the FSEA; where, not what; assigned support exempt	La. R.S. 9:312
3119.83–.84; 45 CFR 302.56(g)	Prospective dollar-for-dollar credit; **R5:** framed as a 3119.22 deviation with the entered determination as the finding	42 U.S.C. 666(a)(9)
3115.205, 3115.604	**R5:** accounting and credit only while Ohio has continuing, exclusive jurisdiction	UIFSA

Criminal

Current law	Change	Origin
2919.23(A)(1); *Parra*, *Sprinkle*, *West*	(A)–(D) unchanged; (E) clarifications	*Parra* ¶¶ 12, 17–18
No declination-notice duty	(F): 60 + 30 days; charge or declination; no reasons; unreviewable; referral not guilt	NEW; OH 2930.05(B)(2), 2930.06

Not adopted

Idea	Why not
$100 / $250 / $500 payments (Rev. 4)	**R5:** deleted. A penalty-without-contempt risk; time is the remedy
A fixed accountable percentage (Rev. 4: 30%)	**R5:** deleted. No legal basis required; invented figure
Companion support bill; FSEA pilot	No federal or constitutional problem found that text

Idea	Why not
	cannot fix
Mandatory FSEA exhaustion before contempt	Direct contempt preserved
Support remedies for parenting denials	R.C. 3109.05(D); federal IV-D structure
Renaming the CSEA; a new state office	Conforming burden; IV-D designation risk; duplication
Parental support as support of the parent	Drifts toward “alimony” (42 U.S.C. 659(i)(3))
Retroactive credits	Bradley Amendment; R.C. 3119.83
Parent-paid FSEA fee	Instruction